

DATA SUBJECT RIGHTS MANAGEMENT POLICY

No. BAL/MIS/24-25/075; Date. 31-Jan-2025

This document
establishes and
governs maintaining
data subject rights
at BAL.

Bajaj Auto Limited, hereinafter referred to as “We” or “Us” or “Organization” or “BAL”, has created this policy to demonstrate its commitment to maintain privacy of its customer/data subjects by safeguarding their personal data.

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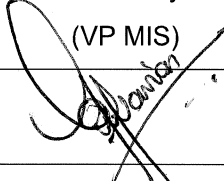
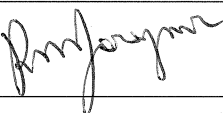
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1. Objective

The objective of this document is to outline BAL's policy for fulfilling Data Subject rights requests and to describe the grievance handling process in accordance with applicable data privacy/protection regulation.

2. Overview

This policy is designed to ensure that BAL meets its obligations under applicable data privacy/protection regulation by defining a process for handling data subject rights requests and grievances. It outlines the procedures for receiving, validating, and fulfilment of requests from Data Subjects, to ensure that their rights regarding personal data are respected.

Please note that for the purpose of this policy, the use of “data” and “information” shall be considered synonymous and has been used interchangeably. For the purpose of this policy, the term personal data refers to customer personal data.

3. Scope

This document applies to all activities, processes, systems, and personnel involved in the processing of customer personal data related to connected electric vehicles to ensure compliance with applicable data privacy/protection regulation in all personal data processing activities across Bangladesh, Brazil, Colombia, Greece, Indonesia, Kenya, Mexico, Nepal, Philippines, Portugal, Saudi Arabia, Spain, Sri Lanka, Thailand, Turkey, UAE.

Please refer appendix b for country specific regulation. The appendix covers the data subject rights requirement for the countries listed above.

This appendix needs to be monitored every six months and any changes to the respective country specific privacy related regulation should be incorporated.

4. Policy

a. Data Subject Access Rights (DSAR's)

The following are the rights that may be exercised by the Data Subject:

- **Right to be informed:** Data subjects have the right to be informed about the collection and use of their personal data.
- **Right to access:** Data subjects have the right to view and request copies of their personal data.
- **Right to rectification:** Data subjects have the right to request inaccurate or outdated personal information be updated or corrected.
- **Right to be forgotten/Right to erasure:** Data subjects have the right to request their personal data be deleted.
- **Right to restrict processing:** Data subjects have the right to request the restriction or suppression of processing their personal data.

- **Right to withdraw consent:** Data subjects have the right to withdraw previously given consent to process their personal data.
- **Right to object:** Data subjects have the right to object to the processing of their personal data.
- **Right to object to automated processing:** Data subjects have the right to object to decisions being made with their data solely based on automated decision making or profiling.

These rights may vary as per the applicable data privacy/protection regulation for the in-scope countries.

b. Roles and Responsibilities

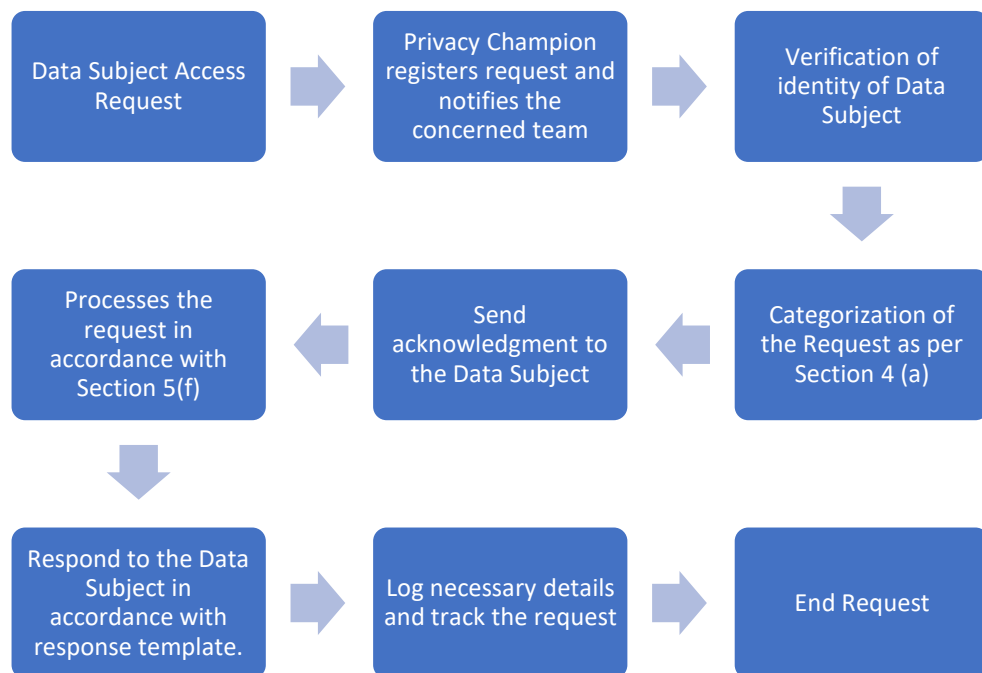
Below are the responsibilities outlined for the defined roles. These responsibilities may vary upon the nature of the request.

Roles	Responsibility
Data Protection Officer	• Overseeing the entire Data Subject Access Request (DSAR) process and ensuring compliance with applicable data privacy/protection regulation • Act as the central point of contact for all DSARs. • Provide guidance on regulatory requirements related to DSARs. • Ensure that all requests are processed within the legally required timeframes. • Monitor and review the effectiveness of the DSAR process. • Handle escalated DSARs and complex issues, particularly those related to exemptions or refusal of requests.
Data Privacy Team	• Support the DPO in managing and processing DSARs. • Assist with the validation of DSARs to ensure that requests are legitimate and come from the correct data subject. • Prepare and send responses/acknowledgements to Data Subjects, ensuring clarity and compliance with data protection laws. • Maintain accurate records of all DSARs, including correspondence and actions taken. • Help track and monitor DSAR progress to ensure timely responses. • Inform and advise BAL employees involved in handling DSAR's regarding BAL's obligations to comply with regulatory requirements as per the applicable data privacy/protection regulation. • Advise the business units processing personal data to determine if any third-party is to be notified and guide them whenever they face any issue or have any doubt. • If erasure request is received, check the retention schedule and advice DPO Office, MIS Infra and Infosec team or respective departments as required.

MIS Infra & Infosec Team	Collaborate with and support the DPO team to ensure timely, accurate, and compliant processing of Data Subject Access Requests (DSARs)
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5. Data subject rights handling process

The Data Subject Rights request process involves the following steps:



a. Data subject rights request

A Data Subject can be a customer / potential customer or an authorized legal representative requesting on behalf of the Data Subject.

The Data Subject Rights Request is to be recorded through the following channels:

- E-mail
- Form on the web portal.

If the request is made by an authorized legal representative, obtain written proof of the Data Subject's permission to submit a rights request on their behalf.

b. Register Request and Notify Data Privacy/ Legal Team

The Privacy Champion captures the request and logs it in the Data Subject Rights Register. After registering the request, the Privacy Champion if required will liaison with the Legal, Data Privacy Team or other teams on the request received.

c. Verify User Identity

- After the data subject's right request has been logged, the Privacy Champion shall confirm the identity of the data subject. This shall be done by examining the relevant information provided by the data subject and validating it with the data available at BAL. If the identity of the data subject cannot be verified, the Data Subject will be notified of the same.
- If BAL cannot verify the data subject with the information already available/provided, BAL may request additional information from the data subject so long as we use this information only for the purposes of verification.
- In the case of an authorized legal representative making a request on behalf of the data subject, due diligence must be conducted to verify their identity. The authorized legal representative must submit proof of written permission from the data subject to make the request and then verify his/ her own identity to make a request on behalf of the data subject. If the identity or the authorization of the legal representative cannot be verified, the requestor will be notified of the same.
- Once the identity of the data subject/ data subject's authorized legal representative is verified, the Privacy Champion will categorize the request that has been received.

d. Categorize the Request

The Privacy Champion shall categorize the data subject's request received in accordance with the data subject's rights outlined in the respective country regulations. The requests shall be classified in any of the specified categories (Refer Section 4.a) or additional (if applicable).

e. Acknowledge Request

- Once the Data Subject's request has been classified, the Privacy Champion shall acknowledge the receipt of the request as per the agreed template by sending a response without undue delay.
- The acknowledgment communication shall state that the Data Subject will receive a response within stipulated time as defined in the applicable data privacy/protection regulation either with an acceptance of the request or a denial of the request and reasons for the denial.

f. Processing the Request

- Once the request is received, the Privacy Champion shall identify if the request might be denied due to any exceptions as listed in Section 6 of this document. If any of the exceptions mentioned apply, the request will be denied. The Privacy Champion will inform the data subject of denying the request.
- If no exception applies, the Privacy Champion shall follow the standard DSAR process by notifying business units within the BAL environment to identify personal data, collect necessary information or take appropriate action, prepare a response, and notify the Data Subject within the stipulated timeline.

- The Privacy Champion shall send the communication to the Data Subject and notify them of the execution of the request.
- Once the rights request received is validated, the Privacy Champion shall compile the information or take the necessary action that has been requested according to the type of request.
- In the case of erasure requests, business units shall assess whether the data can be erased and determine the consequences of such action. If there is a legitimate reason not to erase the data, this must be communicated to the Data Subject through the Privacy Champion.
- Business units must also inform all third parties processing data on the client's behalf to erase the data, where applicable, and stop processing the Data Subject's information in their systems.
- All communications with the third party involved in the data processing of the said data subject's data related to Data Subject Rights Requests shall be made in consultation with the DPO, and the Legal Team.
- Once the Data Subject is notified, the request shall be closed with the appropriate status update.
- If the nature of the DSAR is complex, then an extension may be requested from the Data Subject.

g. Preparing a Response to notify Data Subject

The Privacy Champion shall prepare a response to notify the requester. Please refer to the client DSAR response template (appendix d) for reference templates.

h. Response Window

A request made by the Data Subject shall be resolved by BAL within stipulated time from the date of receipt of the request. Therefore, upon the System or business owner's receipt of the request from the DPO, the System or business owner or concerned HOD must, at the earliest of receiving the request:

- Identify the requested data.
- Complete the requested action.
- Provide the data to the DPO for further action and deliberation.

If the Data Subject is not satisfied with the way the complaint is resolved, or if BAL has rejected the request, the Data Subject may file a complaint to the relevant authorities.

i. Logging and Tracking of Request

Privacy Champion is responsible to capture all the details mentioned in the below DSR Register (Refer appendix c). The Privacy Champion shall ensure that the records are up to date and are maintained in the Data Subject Request Register.

6. Exceptions

Where any request is refused by BAL, it must provide the Data Subject with the reasons in writing for such refusal and shall inform the Data Subject regarding the right to file a complaint with the relevant authority, within such period and in such manner as may be specified by regulations.

Scenarios where Data Subject's Rights Requests can be denied:

- a) If BAL demonstrates that it is unable to verify the identity using available resources or information, such as online identifiers, the email ID registered with the BAL, etc.
- b) If complying with the rights requests would oblige the business to disclose the personal data of another Data Subject, then BAL is not obliged to comply with the request unless the other Data Subject has given consent, or it is reasonable in all the circumstances to comply with the request without the other Data Subject's consent.
- c) In cases where processing is necessary for compliance with law, regulation, statutory requirement, contractual obligation, or order of the court.
- d) If the request is deemed manifestly unfounded or excessive, the organization may either refuse to respond or charge a reasonable fee to cover administrative costs.
- e) If the organization is processing personal data based on legitimate interests, and these interests override the rights of the data subject, the organization may refuse to stop the processing or fulfil requests related to the right to object.

7. Exception to the document

Any deviation or exception to this plan must follow the streamlined approval process/change management process mentioning the business requirement and exception justification for Risk Management Committee / Board by the Management / DPO and recommended for approval.

Any deviation shall be approved by relevant committees and follow exception process.

8. Review Frequency

This document is subject to annual review or earlier if there are changes in the business environment or applicable data privacy/protection regulations. Any updates to this document will be recorded at the beginning of the document.

9. Appendix

a. Definitions

- **Data Subject:** A data subject is a natural person whose personal data is collected, stored, or processed.
- **Personal data:** Any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors.
- **Processing:** Any operation or set of operations which is performed on Personal data or on sets of Personal data, whether by automated means, such as collection,

recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

- **Customer:** A customer is a person who buys goods or services from another business
- **Data Subject Access Right:** Data Subject Access Rights (DSAR) refer to the rights of individuals (data subjects) to access their personal data that is held by an organization.
- **Third-Party:** A natural or legal person, public authority, agency, or body other than the data subject, controller, processor, and persons who, under the direct authority of the controller or processor, are authorized to process personal data.

****NOTE:** The definitions listed above may vary as per the scope of the document. Please refer the Country specific requirement sheet: Definitions for specific country.

b. Applicable Regional specific laws

Below is a list of the countries within scope and their corresponding data protection regulations. Please find the detailed requirements for data subject access rights in each country in country law comparison excel.

S. No.	Country	Regulation
1	Thailand	Personal Data Protection Act 2019 ('PDPA')
2	Sri Lanka	Sri Lanka Personal Data Protection Act, No. 9 of 2022
3	Nepal	Privacy Act 2075 (2018);
4	Bangladesh	The Data Protection Bill, 2023 (Draft)
5	Indonesia	The Personal Data Protection Law, 2022 (PDPL)
6	Saudi Arabia	1. Personal Data Protection Law (PDPL) 2021 2. Personal Data Protection Interim Regulations (PDPIR)
7	UAE	UAE Federal Decree-Law No. 45 of 2021 on the Protection of Personal Data
8	Mexico	The Federal Law on the Protection of personal data held by Private Parties - 2010
9	Turkey	Law on the Protection of personal data No. 6698 dated April 7, 2016 (LPPD).
10	Kenya	Data Protection Act (DPA), 2019
11	Colombia	Law 1581 of 2012 (General personal data Protection Law)
12	Philippines	The Data Privacy Act of 2012(DPA)
13	Brazil	Law No. 13.709 of 14 August 2018, General personal data Protection Law ('LGPD')
14	Greece	The General Data Protection Regulation (GDPR) 2018
15	Portugal	
16	Spain	

c. DSAR request log register- Indicative

Request ID	Date of request	Data subject name	Requestors contact number	Request type	Requested information	Date acknowledged	Verification status	Date completed	Outcome	Responsible department/person

Instructions:

Request ID: Assign a unique identifier to each DSAR for easy tracking.

Date of Request: Record the date when the DSAR is submitted.

Data Subject Name: Record the name of the individual making the request.

Requestor Contact Info: Include the contact details of the requestor (e.g., email or phone number).

Request Type: Specify the type of request, such as access, rectification, or erasure.

Requested Information: Briefly describe the specific information or action requested by the data subject.

Date Acknowledged: Record the date when the organization acknowledged the request.

Verification Status: Note whether the identity of the requestor has been verified.

Date Completed: Record the date when the request was fully processed and completed.

Outcome: Specify whether the request was fulfilled, denied, or requires additional information.

Responsible Department/Person: Name the department or individual responsible for handling the request.

d. Response Templates - Indicative

1. Template to acknowledge DSAR request.

Subject: Acknowledgment of your Data Subject Access Request

Dear [Data Subject's Name],

We acknowledge receipt of your Data Subject Access Request (DSAR) dated [Date]. We are currently reviewing your request and will process it in accordance with applicable data protection regulations.

You will receive a response within the stipulated timeframe [as defined in the applicable data privacy/protection regulation], either confirming acceptance of your request or providing a reasoned denial, as required by law. If we require any additional information to verify your identity or clarify your request, we will contact you promptly.

If you have any follow-up questions in the meantime, please feel free to reach out to us at [Contact Information].

Best Regards,

Data Privacy Team

2. Template to request additional information to verify the requestor's identity.

Subject: Request for additional information to verify your identity

Dear [Data Subject's Name],

Thank you for your Data Subject Access Request (DSAR) submitted on [Date]. We have reviewed the information available to us but are unable to verify your identity with the details provided.

To proceed with your request, we kindly request you to provide additional information for verification purposes. Please submit one or more of the following:

- [Specify required information]

Please note that any information provided will be used solely for identity verification and will be handled securely in accordance with applicable data protection regulations.

You may submit this information by responding to this email at your earliest convenience. If we do not receive the required details within [timeframe], we may be unable to process your request.

If you have any questions or concerns, please contact us at [Contact Information].

Best regards,

Data Privacy team

3. Template to verify identity of the legal representative.

Subject: Request for authorization and identity verification

Dear [Representative's Name],

We acknowledge receipt of your request submitted on behalf of [Data Subject's Name] on [Date]. To proceed, we are required to verify both your identity and your authorization to act on behalf of the Data Subject.

Please provide the following documents:

1. Proof of Authorization – A signed letter or legal document from the Data Subject granting you permission to submit this request on their behalf.
2. Identity Verification – A copy of a government-issued ID or other official document verifying your identity.
3. Data Subject Verification – A copy of the Data Subject's identification or other relevant information to confirm their identity.

All information provided will be used solely for verification purposes and will be handled securely in accordance with applicable data protection laws.

Kindly submit the required documents via [secure method] within [timeframe] to avoid delays in processing the request. If you have any questions, please contact us at [Contact Information].

Best regards,
Data Privacy team

4. Template to be used in situations where Privacy Champion is unable verify identity/authorization of the legal representative.

Subject: Unable to Verify Identity/Authorization for Data Subject Request

Dear [Data Subject's Name],

We have reviewed the information provided in connection with your request submitted on behalf of [Data Subject's Name] on [Date]. However, we were unable to verify [either your identity or your authorization to act on behalf of the Data Subject].

To proceed with the request, we kindly ask you to submit the necessary verification documents, such as:

Proof of Authorization – A signed letter or legal document from the Data Subject granting you permission.

Identity Verification – A valid government-issued ID or other official document confirming your identity.

Data Subject Verification – Relevant identification details to confirm the Data Subject's identity.

If we do not receive the required information within [timeframe], we may be unable to process the request. Should you have any questions or need further clarification, please contact us at [Contact Information].

Best regards,
Data Privacy team

5. Template to comply with a request to disclose information.

Subject: Response to Your Data Subject Access Request

Dear [Data Subject's Name],

We have verified your identity and are processing your Data Subject Access Request (DSAR) dated [Date] in accordance with applicable data protection regulations.

Please find attached the requested information related to your personal data. If you have any questions or require further clarification, please feel free to reach out to us at [Contact Information].

If you believe any of the information is incorrect or incomplete, please let us know, and we will be happy to assist you.

Best regards,

Data Privacy team

6. Template to comply with a request for erasure and correction of personal data.

Subject: Confirmation of Your Data Erasure/Correction Request

Dear [Data Subject's Name],

We have reviewed and processed your request for [erasure/correction] of your personal data, submitted on [Date], in accordance with applicable data protection regulations.

[For Erasure Requests:]

We confirm that the requested personal data has been erased from our records, except where retention is required by law or regulatory obligations. If any data must be retained for legal reasons, we will inform you accordingly.

[For Correction Requests:]

We have updated your personal data as per your request. If you have any further corrections or notice any discrepancies, please let us know, and we will be happy to assist you.

If you have any questions or require further clarification, please feel free to contact us at [Contact Information].

Best regards,

Data Privacy team

7. Template to notify customer extension of time required to respond to the request.

Subject: Update on your Data Subject Access Request

Dear [Data Subject's Name],

Thank you for your Data Subject Access Request (DSAR) dated [Date]. We are currently processing your request in accordance with applicable data protection regulations.

Due to [reason for delay, e.g., the complexity of the request, high volume of requests], we require additional time to complete our response. As permitted under data

protection laws, we are extending the response time by [number of days/weeks] and will provide you with an update by [new deadline].

We appreciate your patience and understanding. If you have any questions in the meantime, please feel free to contact us at [Contact Information].

Best regards,
[Your Name]

8. Denial in case of Exception (section 6.a)

Subject: Notification Regarding your Data Subject Access Request

Dear [Data Subject's Name],

We have reviewed your Data Subject Access Request (DSAR) dated [Date] and assessed it in accordance with applicable data protection regulations. Unfortunately, we are unable to process your request as we could not verify your identity using the available information and resources, such as online identifiers, registered email ID, or other details associated with your account.

To protect your personal data and ensure compliance with legal requirements, we can only fulfill requests once we have successfully verified the requestor's identity. If you can provide additional information to verify your identity, please respond to this email with the necessary details, and we will reassess your request.

If you have any questions or need further assistance, please contact us at [Contact Information].

Best regards,
Data Privacy Team

9. Denial in case of Exception (section 6.b)

Subject: Notification Regarding Your Data Subject Access Request

Dear [Data Subject's Name],

We have reviewed your Data Subject Access Request (DSAR) dated [Date] and assessed it in accordance with applicable data protection regulations. At this time, we are unable to fulfill your request, as complying with it would require disclosing personal data of another individual.

Under data protection laws, we are not obliged to disclose such information unless we have obtained the explicit consent of the other Data Subject or if it is deemed reasonable in the circumstances to proceed without their consent. Since neither condition has been met, we are unable to provide the requested data.

If you have any questions or would like to discuss this matter further, please feel free to contact us at [Contact Information].

Best regards,

Data Privacy Team

10. Denial in case of Exception (section 6.c)

Subject: Notification Regarding your Data Subject Access Request

Dear [Data Subject's Name],

We have reviewed your Data Subject Access Request (DSAR) dated [Date] in accordance with applicable data protection regulations. Unfortunately, we are unable to fulfill your request, as the processing of the requested data is necessary for compliance with a legal, regulatory, or statutory requirement, a contractual obligation, or an order of the court.

As such, we are legally required to retain and process this information and are unable to accommodate your request at this time. If you require further clarification, please feel free to contact us at [Contact Information]. You may also have the right to escalate this matter to the relevant data protection authority, and we can provide guidance on this process if needed.

Best regards,
Data Privacy Team

11. Denial in case of Exception (section 6.d)

Subject: Notification Regarding your Data Subject Access Request

Dear [Data Subject's Name],

We have reviewed your Data Subject Access Request (DSAR) dated [Date] in accordance with applicable data protection regulations. Based on our assessment, we have determined that your request is [manifestly unfounded/excessive] as per the applicable legal framework.

In such cases, we are permitted to either refuse to process the request or charge a reasonable fee to cover administrative costs. [If applicable: Should you wish to proceed with your request, a fee of [amount] will be required to cover the administrative costs. Please confirm if you would like to proceed and we will provide further instructions on payment.]

If you have any questions or require further clarification, please feel free to contact us at [Contact Information]. You may also have the right to escalate this matter to the

relevant data protection authority, and we can provide guidance on this process if needed.

Best regards,

Data Privacy team

12. Denial in case of Exception (section 6.e)

Subject: Notification Regarding your Data Subject Access Request

Dear [Data Subject's Name],

We have reviewed your Data Subject Access Request (DSAR) dated [Date] in accordance with applicable data protection regulations. Based on our assessment, we are unable to fulfill your request, as the processing of your personal data is conducted under our legitimate interests, which override your rights and freedoms in this instance.

Under data protection laws, organizations may continue processing personal data if their legitimate interests outweigh the rights of the Data Subject. After careful consideration, we have determined that our processing meets this requirement and, therefore, we are unable to [stop processing/fulfill your request to object].

If you require further clarification or wish to discuss this matter further, please feel free to contact us at [Contact Information]. You may also have the right to escalate this matter to the relevant data protection authority, and we can provide guidance on this process if needed.

Best regards,

Data Privacy Team